

H. M. LAND REGISTRY
LAND REGISTRATION ACTS 1925 to 1966



250
Lgr
July

Administrative Area: Greater London
Parish or Place: London Borough of Kensington & Chelsea
Title No:
Property: Flat 1, 20 Hornton Street
London W.8.

THIS UNDERLEASE is made the
27th day of March One thousand nine
hundred and seventy three BETWEEN RIENZI
FELIX MORITZ FERNANDO of 120 Stuart Tower, Maida Vale
London W.9 (hereinafter called "the Lessor") of the
one part and DR. CLAUDE TRISTRAM NEWNHAM and EVELYN
MARY CORNWALL NEWNHAM (his wife) both of 14 Grove Road
Beaconsfield in Buckinghamshire (hereinafter together
called "the Lessees") of the other part.

NOW THIS DEED WITNESSETH as
follows:

1. IN this Lease and the Schedules hereto the
following expressions shall where the context so admits
have the meanings hereby given respectively:
 - (i) "the Lessees" and "the Lessor" shall include the
estate owner or estate owners for the time being
entitled respectively to the term hereby granted and
the reversion expectant thereon including in the case
of two or more joint lessees the survivor or survivors
of them
 - (ii) "the Head Lease" shall mean the Lease dated the
19th day of December 1904 between the Honourable Sir
Walter George Frank Phillimore of the one part and
William Adams Daw of the other part
 - (iii) "the Licence" shall mean the Licence dated the
6th day of July 1972 and made between John Gore
The Honourable Robert George Hugh Phillimore
Phillimore and Simon James Mosley of the one part and
the Lessor of the other part
 - (iv) "the demised premises" shall mean those parts of
the Lessor's property which are hereby demised and are
described in the First Schedule hereto

(v) "the garden" shall mean the communal ornaments garden in the rear of the Lessor's property.

(vi) "the Patio" shall mean the rear patio forming part of the demised premises.

(vii) "the Building" shall mean the Building known as 20 Hornton Street aforesaid of which the demised premises form part.

(viii) "the Lessor's property" shall mean the land house and other buildings and erections (if any) comprised in the Lessor's Title No. 100715.

(ix) "the service charge" shall have the meaning assigned to it in Clause 3 (2) hereof.

(x) "year of accounting" shall mean the period of twelve months by reference to which the service charge shall be determined which shall be the year ending 29th day of September in each year unless the Lessor shall otherwise determine.

(xi) expressions denoting the singular number shall include the plural and expressions denoting the masculine gender shall include the feminine as the case may be.

(xii) covenants entered into by two or more persons shall be joint and several covenants by such persons.

2. IN consideration of the sum of TWENTY-THREE THOUSAND SEVEN HUNDRED AND FIFTY POUNDS (£23,750) not paid by the Lessee to the Lessor (the receipt whereof the Lessor hereby acknowledges) and of the rent and covenants on the part of the Lessee and conditions hereinafter reserved and contained the Lessor hereby demises unto the Lessee ALL the demised premises TOGETHER WITH the rights set forth in the Second Schedule hereto TO HOLD unto the Lessee for a term (hereinafter called "the said term") commencing the day of March 1973 and expiring on the 19th day of March 2002 (determinable nevertheless as hereinafter provided) subject to the rights set out in the Third Schedule hereto (which are hereby excepted and reserved out of this demise) paying therefor during the said term the yearly rent £150 and the further and additional rents hereinafter mentioned to be paid by equal quarterly payments in advance on the usual quarter days in every year the

aments

forming

known as
sed

land
(y)

ing

od of
s char
ding
Lessor

shall

the

sons
rsons

EE
D) no
hereo

and
ons
reby

erm
the

able

the

ch
ise)

rent

after

in

the

first whereof is to be paid on the execution hereof
and being apportioned (if necessary) in respect of the
period from the 27th day of

March 1972 to the quarter day next hereafter

2.

THE Lessee for himself and his assigns to the
intent that the obligations may continue throughout
the said term hereby covenants with the Lessor as
follows that is to say:-

(1) To pay the reserved rent at the times herein-
before appointed for payment thereof clear of all
deductions.

(2) To pay to the Lessor without any deduction by way
of further and additional rent one third of the
expenses and outgoings incurred by the Lessor in the
repair maintenance renewal and insurance of the Lessor's
premises and the provision of services therein and other the
performance by the Lessor of his obligations in this
Underlease set forth and the other heads of
expenditure as the same are set out in the Fifth
Schedule hereto such further and additional rent
(hereinafter called "the service charge") being
subject to the following terms and provisions:

(a) the amount of the service charge shall be
ascertained annually and certified by a Certificate
(hereinafter called "the Certificate") signed by the
Lessor's Accountants or Managing Agents (at the
discretion of the Lessor) acting as experts and not as
arbitrators.

(b) a copy of the Certificate for each year shall
be supplied by the Lessor to the Lessee on written
request and without charge to the Lessee.

(c) the Certificate shall contain a summary of
the Lessor's said expenses and outgoings incurred dur-
ing the year of accounting to which it relates
together with a summary of the relevant details and
figures forming the basis of the service charge and
the Certificate (or a copy thereof duly certified by
the person by whom the same was given) shall be
conclusive evidence for the purposes hereof of the
matters which it purports to certify.

(d) the Lessee shall if required by the Lessor
with every quarterly payment of rent reserved hereunder
pay to the Lessor such sum in advance and on account

of the service charge as the Lessor or his Accountant or Managing Agents (as the case may be) shall specify at their discretion to be a fair and reasonable interim payment _____

(e) as soon as practicable after the signature of the Certificate the Lessor shall furnish to the Lessee an account of the Service Charge payable by the Lessee for the year in question due credit being given therein for all interim payments made by the Lessee in respect of the said year and upon the furnishing of such account showing such adjustment as may be appropriate there shall be paid by the Lessee to the Lessor the amount of the service charge as aforesaid or any balance found payable or there shall be allowed by the Lessor to the Lessee any amount which may have been overpaid by the Lessee by way of interim payment as the case may require _____

(f) the expression "the expenses and outgoings incurred by the Lessor" as hereinbefore used shall be deemed to include not only those expenses outgoings and other expenditure hereinbefore described which have been actually disbursed incurred or made by the Lessor during the year at any time in question but also such reasonable part of all such expenses outgoings and other expenditure hereinbefore described which are of a periodically recurring nature (whether recurring by regular or irregular periods) whenever disbursed incurred or made and whether prior to the commencement of the said term or otherwise including a sum or sums of money by way of reasonable provision for anticipated expenditure in respect thereof as the Lessor or his Accountants or Managing Agents (as the case may be) may in their discretion allocate to the period in question as being fair and reasonable in the circumstances _____

(g) it is hereby agreed and declared that the Lessor shall not be entitled to re-enter under the provision in that behalf hereinafter contained by reason only of non-payment by the Lessee of any such interim payment as aforesaid prior to the signature of the Certificate but nothing in this Clause or these presents contained shall disable the Lessor from maintaining an action against the Lessee in respect of non-payment of any such interim payment as

...ssor or his ...
...may be) s...
...r and reas...
...after th...
...shall furni...
...e Charge p...
...due credi...
...payments m...
...year and up...
...ing such a...
...be paid by...
...e service c...
...payable on...
...e Lessee an...
...Lessee by a...
...e...
...expenses an...
...einbefore...
...se expenses...
...fore desc...
...ncurred or...
...time in qu...
...ch expense...
...fore desc...
...ature (whet...
...is) wheneve...
...prior to th...
...including...
...provision...
...f as the Le...
...s (as the o...
...ate to the...
...asonable in...
...obedience to a notice served by a local authority

...foresaid notwithstanding that the Certificate had not
...been signed at the time of the proceedings subject
...nevertheless to proof in such proceedings by the
...Lessor that the interim payment demanded and unpaid is
...of a fair and reasonable amount having regard to the
...prospective service charge ultimately payable by the
...Lessee
(h) Provided always and notwithstanding anything
...herein contained it is agreed and declared that the
...provisions of paragraph (e) hereof shall continue to
...apply notwithstanding the expiration or sooner
...determination of the term hereby granted but only in
...respect of the period down to such expiration or
...sooner determination of the said term

(3) To pay and bear all rates taxes charges duties
...burdens obligations assessments impositions and out-
...goings of every kind and description whatsoever whether
...parliamentary parochial local or otherwise which shall
...be directly or indirectly rated taxed charged or
...assessed on or in respect of the demised premises or
...any part thereof or the Lessor or Lessee thereof or
...any person having control thereof and which shall be
...made payable during or for any portion of the said
...term and to keep the Lessor indemnified against all
...claims in respect of any of the foregoing liabilities

(4) To pay all charges for gas and electricity
...supplied to the demised premises as shown by separate
...meters provided therefor and the charges for such
...meters and to indemnify the Lessor in respect thereof

(5) From time to time during the said term to pay
...all costs charges and expenses incurred by the Lessor
...in abating any nuisance in or on the demised premises
...and executing all such works as may be necessary for
...abating any nuisance at the demised premises in
...obedience to a notice served by a local authority

(6) (a) To observe the restrictions and regulations
...specified in the Fourth Schedule hereto and such
...other restrictions and regulations as the Lessor may
...from time to time make and of which notice shall be
...prior to given to the Lessee

(b) To observe and perform and be bound by all
...the covenants rules and regulations contained in the
...Licence and the Schedule thereto so far as they relate
...to the demised premises or the Lessee's use of any

other part of the Lessor's property and so far as the Lessor has not hereinafter covenanted exclusively to perform and observe the same and to indemnify the Lessor against all liability in respect of costs claims demands loss or damage or otherwise whatsoever arising out of the non-performance or non-observance of the said covenants rules and regulations by the Lessee his servants agents Licensees or visitors.

(7) (a) To pay to the Lessor all costs charges and expenses (including legal costs and fees payable to a surveyor) which may be incurred by the Lessor incidental to the preparation and service of a notice under Section 146 of the Law of Property Act 1925 or incurred in or in contemplation of proceeding under Sections 146 or 147 of that Act notwithstanding forfeiture may be avoided otherwise than by relief granted by the Court.

(b) To pay all expenses including Solicitors' costs and Surveyors' fees incurred or payable by the Lessor of an incidental to the service of all notices and Schedules relating to wants of repair to the demised premises whether the same be served during or after the expiration or sooner determination of the said term (but relating in all cases to such wants of repair that accrued not later than the expiration or sooner determination of the said term as aforesaid).

(3) From time to time as may be reasonably necessary during the said term (but in any case in the year 1973 and every seventh year calculated from the 25th day of March 1973 and also in the last quarter of the last year of the said term (howsoever determined) to paint in a proper and workmanlike manner all the inside wood and iron work usually painted of the demised premises with two good coats of good quality paint and so that such internal painting in the last year of the said term shall be of a tint or colour to be approved by the Lessor. And also with every such internal painting to whiten colour wash distemper grain varnish paper and otherwise decorate in a proper and workmanlike manner all such internal parts of the demised premises as have been or ought properly to be so treated and so that in the last year of the said term the prints colours and patterns of all such works of internal decoration shall be such as shall be approved by the Lessor.

(9) From time to time and at all times during the said term (except insofar as the like liability is imposed on the Lessor by the provisions of Clause 5 hereof) well and substantially to repair maintain cleanse amend and renew (including replacements whenever such shall be necessary) the demised premises and to keep the same so repaired maintained cleansed amended and renewed in every respect together with the appurtenances thereto and all improvements and additions which may be erected or made thereupon or thereto during the said term and all fixtures and other things which now are or at any time during the said term shall be fixed to the demised premises or belong thereto all necessary work in that behalf being carried out in a proper and workmanlike manner with good materials and to the satisfaction of the Lessor and his surveyor in all respects.

(10) The Lessee shall before carrying out any repairs or works which he is required to carry out and for which he required access to any other part of the Lessor's property give reasonable notice (and except in cases of extreme urgency at least 48 hours' notice) in writing to the Lessor and to the occupier of that part of the Lessor's property to which the Lessee requires access. The Lessee shall on giving such notice be entitled to carry out the said repairs or works and in doing so to have any required access to the said other part of the Lessor's property but shall act carefully and reasonably doing as little damage as possible and making good all damage done.

(11) To do all things necessary for the purpose of complying in all respects with the provisions of the Town & Country Planning Acts and such local or other acts as may be applicable and for the time being in force or as may be required by or under any Act of Parliament or by any competent authority (whether municipal local or otherwise) in respect of the demised premises or the manner of user thereof and to indemnify (as well after the expiration of the said term by effluxion of time or otherwise as during its continuance) and to keep the Lessor indemnified against all liability whatsoever including costs and expenses in respect of such matters.

(12) At the end or sooner determination of the said term quietly to surrender and yield up the demised premises to the Lessor or as he may direct with the improvements additions and fixtures so repaired maintained cleansed amended painted decorated and renewed and in such good and substantial repair and condition in all things as shall be in accordance with the covenants and conditions on the part of the Lessee herein contained and any disputes or difference then arising as to the state of repair of the demised premises or as to the monies to be paid by the Lessee in respect of any want of repair shall if so required by the Lessor be referred to the arbitration of independent Architects or Surveyors in accordance with the Arbitration Acts then in force

(13) To permit the Lessor and any person authorised by him on giving 48 hours previous notice in writing (except in case of emergency) at all reasonable times during the said term to permit the Superior Lessors and their Agents from time to time during the said term to enter upon the demised premises or any part thereof for the purposes of viewing the condition and mode of user thereof and to take schedules of the fixtures and fittings thereon and for other reasonable purposes and to give to or leave upon the demised premises for the Lessee a notice in writing of all defects decays and wants of repair in breach of the covenants on the part of the Lessee herein contained or removal of fixtures there found and the Lessee will with all proper despatch and in any case within two months then next following well and sufficiently repair and amend and restore the demised premises accordingly and will pay and discharge on demand all costs charges and expenses (including legal costs and any fees payable to a surveyor) incurred by the Lessor or his Agents of and incidental to the preparation and service of such last mentioned notice or of any statutory notice relating to any breach of covenant PROVIDED ALWAYS that in case of any default in the performance of the foregoing covenant it shall be lawful for the Lessor (but without prejudice to any other right or remedy) to enter upon the demised premises and repair or put in order the same or

in accordance with the covenants and provisions hereof and the costs and expenses thereby incurred by the Lessor or his Agents shall be repaid to the Lessor by the Lessee on demand such costs to be recoverable by the Lessor as if the same were rent in arrear

(14) Not without the consent in writing of the Lessor to effect any insurance of the demised premises or any part thereof provided nevertheless that the Lessee after giving fourteen days prior notice containing full particulars of her intention in that behalf and having received the written consent of the Lessor thereto may effect any additional insurance in respect of the internal decorations in the demised premises or the Landlord's fixtures and fittings therein and shall if so required by the Lessor produce the Policy of such insurance to the Lessor on demand

(15) Not to carry on or permit upon the demised premises or any part thereof any trade business or occupation whatsoever nor to do or suffer to be done thereon or upon any part of the Lessor's property any other thing which may be or become a nuisance annoyance or inconvenience to the Lessor or to the owners lessees or occupiers of other parts of the Lessor's property or of any neighbouring property or whereby any insurance effected by the Lessor or the Superior Lessors may be rendered void or whereby the rate of premium may be increased nor to use the demised premises or any part thereof nor allow the same to be used for any illegal or immoral purpose nor to hold therein or thereon any sale by auction but that the whole and every part of the demised premises shall at all times during the said term be used for the purpose of a high class private residence with private patio in the occupation of one family only the expression "family" having its English meaning and so that the demised premises or the occupation thereof shall in no circumstances be shared PROVIDED however that nothing herein contained shall imply or be deemed to be a warranty that the demised premises may in accordance with the Town & County Planning laws and regulations now or from time to time in force be used for the purpose above mentioned

(16) The Lessee shall clean the windows of the demised

premises as often as may be necessary and with each such cleaning shall wash the window frames on the outside thereof and the window sills

(17) Not to cut injure alter or divide the demised premises or any part thereof nor make or permit to be made any structural alteration improvement or addition whatsoever in or to the demised premises or any part thereof and in particular not to cut or to weaken or injure the ceilings walls or floors of the demised premises or permit the same to be cut altered weakened or injured and not to unite or annex the demised premises to or with any other premises nor to do or suffer in or upon the demised premises any wilful or voluntary waste or spoil

(18) To keep the demised premises (including the passages thereof) substantially covered with carpets except that in the kitchen and bathroom all over cork or rubber covering or other suitable material for avoiding the transmission of noise may be used instead of carpets

(19) (a) Not to carry out or permit or suffer to be carried out any "development" to the demised premises within the meaning of the legislation for the time being in force as to Town & Country Planning

(b) Within four days of the receipt of the same by the Lessee to give full particulars to the Lessor of any notice or proposal for a notice or order or proposal for any order given issued or made to or on the Lessee by any authority under or by virtue of any Town & Country Planning Acts or any Housing Acts Public Health Acts or Public Acts or any other statute affecting the demised premises or any part thereof and if so required by the Lessor to produce such notice order or proposal to him and without delay to take all reasonable and necessary steps to comply with any such notice order or proposal and at the request of the Lessor but at the cost of the Lessee to make or join with the Lessor in making such objections or representations against or in respect of such notice order or proposal as they or either of them shall deem expedient

(20) In the event of the demised premises or of the building being damaged or destroyed by fire at any time during the said term and the insurance money un-

any insurance against fire effected thereon being wholly or partially irrecoverable by reason solely or in part of any act or default of the Lessee her servants agents or licensees then and in such case the Lessee will forthwith (in addition to the said rents and other monies hereby covenanted to be paid) pay to the Lessor the whole or (as the case may require) a fair proportion of the cost of completely rebuilding and reinstating the same any dispute as to the proportion to be so contributed by the Lessee or otherwise in respect of or arising out of this provision to be referred to arbitration in accordance with the provisions of the Arbitration Act 1950 or any statutory modification or re-enactment thereof for the time being in force.

(21) Not without the Licence in writing of the Lessor first obtained to enter into any agreement with or give any acknowledgment to the owner or Lessee of any premises adjoining opposite or near to the demised premises with reference to any easement or right enjoyed or claimed by such owner or Lessee over upon or under the demised premises or enjoyed or claimed in respect of or for the benefit of the demised premises over upon or under any premises adjoining opposite or near to the demised premises

(22) (a) Not at any time to assign sub-let charge or part with possession of part only of the demised premises or to permit or suffer the same to be done

(b) Not at any time to assign sub-let or part with possession of the whole of the demised premises or permit or suffer the same to be done without the previous written consent of the Lessor not unless there shall previously have been executed at the expense of the Lessee and delivered to the Lessor for retention by him a deed expressed to be made between the Lessor of the first part the Lessee of the second part and the person or persons to whom it is proposed to assign sub-let or part with possession as aforesaid of the third part whereby the person to whom it is proposed to assign sub-let or part with possession shall have covenanted directly with the Lessor to observe and perform throughout the said term the covenants on the part of the Lessee herein contained including the covenant contained in this sub-clause

possession of or permit any sub-tenant to under-let or part with possession of the demised premises at an annual rent less than the rents hereby reserved exclusive of all outgoings _____

(d) Within one calendar month after any such document or instrument as is hereinafter mentioned shall be executed or shall operate or take effect or purport to operate or take effect to produce to the Lessor's Solicitors every Transfer Mortgage or Legal Charge of this Underlease or the demised premises or any part thereof and also every sub-Underlease thereof and every assignment of such sub-Underlease and also every Probate Letters of Administration Order of Court or other instrument effecting or evidencing a devolution of title as regards the said term or any such sub-Underlease as aforesaid for the purpose of registration and on every such registration to pay to such solicitors a fee of Five Pounds (£5) in respect of each such document or instrument so produced _____

(23) To indemnify the Lessor against any claims proceedings or demands and the costs and expenses incurred thereby which may be brought against the Lessor by any servant work people agents or visitors of the Lessee in respect of any accident loss or damage whatsoever to personal property howsoever caused or occurring upon the demised premises _____

(24) To allow the Lessor or his agents to enter upon the demised premises at any time within six months next before the expiration or sooner determination of the said term to fix thereon a notice board for re-letting or selling the same and not to remove or obscure such notice board and to permit all persons authorised by the Lessor or his agents to view the demised premises at reasonable hours without interruption _____

(25) To keep in repair and replace when necessary all cisterns pipes wires ducts radiators and other things installed for the purpose of supply of water (cold or hot) gas electricity central heating or for the purpose of draining away water soil or for allowing the escape of steam or other deleterious matter from the demised premises insofar as such things are installed and used only for the purposes of the demised premises and for the purpose of such repairs the Lessee and his workmen shall

have access to such pipes wires ducts and other things where they are in upon or under the remainder of the Lessor's property upon proper notice being given to the Lessor and to the occupier or occupiers of those parts of the Lessor's property to which such access is required—

(26) To make good all damage caused through the act or default of the Lessee or of any servant or agent or visitor of the Lessee—

(a) To any part of the building or to the appointments or the fixtures and fittings thereof and

(b) To any other occupier or tenant of the building and their licensees and in each case to keep the Lessor indemnified from all claims expenses and demands in respect thereof—

(27) To remove or cause to be removed at least twice a week from the demised premises all domestic refuse and rubbish and at all times to keep any domestic refuse containers therein or thereon clean and odour free—

(28) To maintain the patio in good order and ornamental condition—

(29) To duly perform and observe and be subject to all the provisions set forth in the Schedule to the Lease relating to the conduct and management of the Garden and to abide by and submit to and observe and perform the rules and regulations from time to time made by the Committee elected under the said scheduled provisions—

(30) Within four days of the receipt of the same by the Lessee to give full particulars to the Lessor of any notice given delivered or served on or to the Lessee or the demised premises by the Superior Lessors and if so required by the Lessor to produce such Notice to the Lessor—

PROVIDED ALWAYS and it is hereby agreed that if the said rents or any part thereof shall be unpaid for twenty-one days next after becoming payable (whether the same shall have been formally demanded or not) or if the Lessee shall not duly perform or observe all the covenants and provisions hereby on the part of the Lessee to be performed or observed and notwithstanding any waiver by the Lessor of any previous non-payment of rent or breach or non-performance of any such covenant agreement or condition

then and in any of the said cases and thenceforth it shall be lawful for the Lessor or any person or persons duly authorised by the Lessor in that behalf to re-enter into or upon the demised premises or any part thereof in the name of the whole and to re-possess and enjoy the same as if this Lease had not been made but without prejudice to any right of action or remedy of the Lessor in respect of any antecedent breach of any of the covenants by the Lessee herein contained

5. THE Lessor hereby covenants with the Lessee that subject to the payment by the Lessee of the rents and the service charge and PROVIDED THAT the Lessee has complied with all the covenants agreement and obligations on his part to be performed and observed (and this covenant is subject to such payment and compliance as a condition precedent)

(i) The Lessor will at all times during the term maintain in good repair and condition and decoration:-

(a) the main structure and in particular the foundations roofs external and load-bearing walls of the building

(b) all pipes wires ducts conduits cistern tanks drains and sewers in under or upon the Lessor's property other than such as exclusively serve the demised premises

(c) the entrance entrance hall passages landings and staircases of the building used or enjoyed by the Lessee in common with the Lessees and occupiers of other parts of the building or used or enjoyed in common by the Lessee or all of the Lessees or occupiers of other parts of the building

(d) the gates and fences (if any) of the Lessor's property

(e) all parts of the Lessor's property not hereinbefore in this Clause expressly referred to other than such parts thereof as are comprised in any separate demise

(ii) The Lessor will pay and discharge all existing and future rates (including water rates taxes and assessments and outgoings whatsoever whether parliamentary parochial local or of any other description which now are or may at any time hereafter during the said term be assessed

charged or imposed upon or payable in respect of the Lessor's property or any part thereof or on an owner or occupier thereof or on any person having control thereof other than such as are separately assessed charged imposed or payable in respect of the demised premises or any part of the building separately demised

(iii) The Lessor will insure and keep insured the Lessor's property and the Lessor's fixtures therein and thereon against loss or damage by fire and such other risks as the Lessor shall deem desirable or expedient in some insurance office or with underwriters of repute at the election of the Superior Lessors and in case of destruction of or damage to the building or any part thereof from any cause covered by such insurance as to make the same unfit for habitation and use and will lay out all monies received in respect of such insurance (other than for loss of rent and architect's and surveyor's fees) in rebuilding and reinstating the same as soon as reasonably practicable

(iv) The Lessor will in the event of the demised premises being destroyed or so damaged by any insured risk as to be rendered partially or wholly unfit for occupation and use and PROVIDED THAT the insurance effected by the Lessor shall not have been vitiated or payment of the Insurance moneys refused in whole or in part in consequence of some act or default on the part of the Lessee his family servants or agents then the rent hereby reserved or a proportionate part thereof according to the nature and extent of the injuries sustained shall forthwith cease to be payable until the demised premises shall have been restored and reinstated and again rendered fit for occupation and use and in case any dispute shall arise as to the amount of such proportionate part or the period during which such cesser or abatement of rent shall be allowed the matter shall be referred to the Lessor's Surveyor as a single arbitrator in accordance with the provisions of the Arbitration Act 1950 or any statutory modification or re-enactment thereof for the time being in force

(v) without prejudice to the foregoing the Lessor will do or cause to be done all such works installations acts matters and things as may in the Lessor's absolute discretion be necessary or advisable for the proper maintenance safety and administration of the Lessor's property including in particular (but without prejudice to the generality of the foregoing) the appointment of Managing or other agents, surveyors and accountants and the payment of their proper fees in connection with the supervision and performance of the Lessor's covenants in this Clause contained and the employment and payment of such contractors agents or servants as the Lessor shall think necessary in and about the performance of the covenants and provisions of this Clause PROVIDED ALWAYS that the Lessor shall not be liable for any act or omission of any such contractors agents or servants in and about the performance of the said covenants and provisions or any of them or for failure to perform all or any of the said covenants if the Lessor shall forthwith have taken and continue take all reasonable steps to secure the performance of the same

(vi) The Lessor will maintain (if and when installed by the Lessor at his discretion) a communal television aerial or aerials (rented or otherwise at the entire discretion of the Lessor) serving the building and will pay all expenses in connection with the installation and maintenance thereof

(vii) Save insofar as the cost thereof may be proportionately payable by the Lessee in accordance with their covenants in this Underlease contained the Lessor will be exclusively responsible for compliance with the covenants contained in the following Clauses of the Licence: 2 (4), 2 (6), 2 (7), (ii), 2 (8), 2 (9), 2 (10), 2 (11); and also (save as aforesaid) will be so responsible in respect of the obligations imposed by paragraph 3 of the Schedule to the Licence

(viii) The Lessee paying the said yearly rents

and the service charge and observing and performing the covenants conditions and agreements hereinbefore contained and on his part to be observed and performed the Lessee shall and may quietly enjoy the demised premises and the rights set forth in the said Second Schedule during the said term without any interruption by the Lessor or any person claiming through or in trust for the Lessor

6. PROVIDED further and it is hereby agreed as follows:

(i) Except so far as the same may be insured by any policy maintained under Clause 5 (iii) hereof the Lessor shall not be liable to the Lessee nor shall the Lessee or any stranger to this Contract who may be permitted to enter or use the Lessor's property or any part thereof have any claim against the Lessor in respect of

(a) any damage suffered by the Lessee or any servant agent or workman of the Lessee or any member of the Lessee's family or any licensee of his through any defect in any fixture pipe wire tube meter staircase or thing in or upon the Lessor's property or any part thereof (including the demised premises)

(b) Any act neglect default omission misfeasance or non-feasance of any of the Lessor's or the Superior Lessors' staff servants or any person acting under such staff or servants

(c) Any loss or damage or interference or annoyance suffered by the Lessee during the carrying out by the Lessor or the Superior Lessors of repairs decorations additions alterations or other works whether structural or otherwise which may appear to the Lessor to be necessary or desirable to the demised premises or to the building or to any other part of the Lessor's any other property of the Superior Lessors provided the same (so far as they are done by or on behalf of the Lessor) are carried out with reasonable skill and care

(d) Any moneys held on account of the service charge pursuant to Clause 3 (ii) (d) hereof which after the Lessor has parted with the

reversion to the demised premises have been paid to the Purchasers of the reversion or the duly authorised managing agents—

(ii) Nothing in this Underlease shall impose any obligations on the Lessor to provide or install any system or service not in existence at the date hereof—

(iii) No maintenance staff or other persons employed by the Lessor in accordance with the provisions of Clause 5 (v) hereof shall be under any obligation to furnish attendance or make available their services to the Lessee and in the event of any such person employed as aforesaid rendering any services to the Lessee such person shall be deemed to be the servant of the Lessee for all purposes and the Lessor shall not be responsible for the manner in which such services are performed nor for any damage to the Lessee or other persons arising therefrom—

7. (a) Any Notice in writing Certificate or other document required or authorised to be given or served hereunder shall be sufficient although only addressed to the Lessee without his name or generally to the person interested without any name and notwithstanding that any person to be affected thereby is absent under disability or unascertained and shall be sufficiently given or served if it is left at the last known place of abode or business of the Lessee or other person to or upon whom it is to be given or served or is affixed or left on the demised premises—

(b) Any such Notice in writing Certificate or other document as aforesaid shall also be sufficiently given or served if it is sent by ordinary post in a prepaid letter addressed to the person to or upon whom it is to be given or served by name at the aforesaid place of abode or business and if the same is not returned through the post office within seven days of posting it shall be deemed to have been received or served at the time at which it would in the ordinary course have been delivered—

IN WITNESS whereof the Lessor and the Lessee have hereunto set their hands and seals the day and year

THE SCHEDULES ABOVE REFERRED TO

THE FIRST SCHEDULE

The Demised Premises

ALL THAT self-contained residential maisonette known as Flat 1 20 Hornton Street in the London Borough of Kensington & Chelsea situate at and comprising part of the ground floor and part of the basement of the building with the staircase within the demised premises linking the said parts of the said floors and shown for the purpose of identification only edged red on the plan annexed hereto together with the rear patio which is for the purpose of identification only shown edged and hatched red on the said plan but so that such further demise shall not be deemed to extend to or include the boundary walls and fences (if any) of the patio

The maisonette shall extend to and include:

(a) all doors and windows thereof
(b) the ceilings and floors of and in the maisonette including the joists girders beams and other structures supporting the said floors and the inner surfaces including the plastered coverings and plasterwork of the ceilings

(c) One moiety of all internal walls dividing the maisonette from other parts of the building severed vertically along the lengths thereof and all other internal and external walls of the maisonette between the horizontal lines representing the top and bottom extents of the maisonette as provided in paragraph (b) above

(d) all pipes wires cables and conduits exclusively serving the maisonette

(e) all fixtures fittings apparatus and equipment in the maisonette

THE SECOND SCHEDULE

Rights included in the demise

Subject to the observance of the rules and regulations hereinbefore in Clauses 3 (6) and 3 (23) referred to

1. The right in common with all others having a like right

(i) of access to and egress from the demised premises and to and from the basement Rubbish Bin Room over and along the stairways landings and other common parts of the building all shown for the purpose of identification edged green on the said plans annexed hereto—

(ii) to use and enjoy the garden—

(iii) the right of access to and from the basement area over the exterior staircase leading thereto from Hornton Street aforesaid—

2. All rights of support and protection now enjoyed by the demised premises—

3. The right to the free passage and running of water gas electricity and soil from and to the demised premises through the pipes wires and drains in under or upon the remainder of the Lessor's property as now enjoyed—

4. Such rights of access to and entry upon the other parts of the Lessor's property as are necessary for the proper performance of the Lessee's obligations hereunder the Lessee causing as little damage or inconvenience as possible by the exercise of such rights and making good all damage done in the course of the exercise thereof—

5. The right to dispose of household refuse in a dustbin kept in the position specified from time to time by the Lessor which dustbin the Lessee shall at all times keep clean and odour-free—

THE THIRD SCHEDULE

Rights and matters to which the demise is made subject—

1. All easements quasi-easements and rights of a like nature and the running of water soil gas and electricity in over or through the drains channels sewers pipes wires ducts and conduits in over or under the demised premises as the same are now or are intended hereafter to be enjoyed from all adjoining premises belonging in possession or reversion to the Lessor and the right to enter into and upon the demised premises for the purpose of laying, repairing or renewing or making good any connection to any drains channels sewers pipes wires ducts and conduits as aforesaid—

2. Such rights of access to and entry upon the demised premises by the Superior Lessors the Lessor their servants agents and workmen and the owners and occupants of the other parts of the Lessor's property as are necessary for the proper performance of any obligations or the exercise of any rights imposed on or granted or reserved to them respectively whether by the Head Lease or by the Licence or by this Underlease or by any Underlease or Sub-Underlease relating to other parts of the Lessor's property whether now existing or hereafter granted or otherwise

3. The right to build on or alter any part of the Lessor's property and of any adjacent property of the Lessor notwithstanding any interference with the access of light or air to the demised premises

4. Such matters as are excepted or reserved in the Head Lease

THE FOURTH SCHEDULE

Restrictions

1. No piano or other musical instrument tape recorder record player television wireless loudspeaker power tool lathe or other mechanical instrument of any kind shall be played or used nor shall any singing be practised in or on the demised premises so as to be audible outside the demised premises between the hours of 11.00 p.m. and 7.00 a.m. or at any time so as to cause annoyance to the owners lessees or occupants of the remainder of the Lessor's property or any part thereof

2. Not (except for the proper use of the waste disposal unit (if any) in the kitchen) to throw dirt rubbish rags or other refuse or permit the same to be thrown into the sinks baths lavatories cisterns or waste or soil pipes in the demised premises

3. No flower box flower pot or other like object shall be placed outside or on the exterior of the demised premises without the written consent of the Lessor; no mat or duster shall be shaken out of the windows of the demised premises or in the garden or basement area; and no bird dog or other animal which in the opinion of the Lessor may cause annoyance to any owner lessee or occupier of any other part of the Lessor's property shall be kept in the demised premises

4. No external wireless or television aerial shall be erected in on or connected with the demised premises without the written consent of the Lessor first obtained.

5. No name writing drawing signboard plate or placard of any kind shall be put on or in any window of the demised premises or on or in any other part of the demised premises so as to be visible from outside the demised premises.

6. No clothes linen bathing costumes or other articles shall be hung up or placed on any part of the demised premises so as to be visible from any other part of the Lessor's property or any adjoining or neighbouring streets or houses.

7. No unsuppressed electrical equipment or appliances shall at any time be used in or upon the demised premises or any part thereof.

8. The Lessee shall not in any way incumber or interfere or suffer or permit any incumbrance or interference with the access to or egress from any part of the Lessor's property not hereby demised nor allow any cycle perambulator car bathchair invalid carriage or other vehicle or thing or any goods package or rubbish to be placed or remain upon any part of the Lessor's property not hereby demised save as is hereinbefore in the Second Schedule expressly permitted.

9. The Lessee shall not permit any water or liquid to escape from the demised premises and in the event of such happening (without prejudice to the Lessor's rights under this Underlease or otherwise) the Lessee shall immediately rectify and make good all damage and injury thereby occasioned.

10. The exterior of the demised premises shall be decorated otherwise than by the Lessor.

11. Not to allow any dog belonging to the Lessee be exercised in the grounds of the Lessor's property other than the demised premises and to keep any such dog on a lead whilst within the curtilage of the Lessor's property except as aforesaid.

THE FIFTH SCHEDULE

Lessor's expenses and outgoings and other heads of expenditure in respect of which the Lessee is to pay a proportionate part by way of service charge

1. The expense of maintaining repairing re-decorating and renewing extending cleaning re-painting painting graining varnishing whitening or colouring the Lessor's property and all parts thereof and all the appurtenances apparatus and other things thereto belonging and more particularly described in Clause 3 (i) hereof—

2. The cost of periodically inspecting maintaining overhauling repairing and where necessary replacing the whole or any part of any heating and domestic hot water system serving the Building—

3. The cost of oil electricity or other fuel required for any boiler or boilers supplying any such heating and domestic hot water system—

4. The cost of insuring and keeping insured throughout the term hereby created the Building and all parts thereof and Lessor's fixtures and fittings therein and all the appurtenances apparatus and other things thereto belonging against the insurable risks indicated in Clause 3 (iii)—

5. The cost of carpeting re-carpeting cleaning decorating and lighting the passages landings staircases and other parts of the Building enjoyed or used by the Lessee in common with others or used or enjoyed in common by some or all of the Lessees or occupiers of other parts of the Building and of keeping the other parts of the Lessor's property used by the Lessee or by the Lessees or occupiers of other parts of other parts of the Building in common as aforesaid and not otherwise specifically referred to in this Schedule in good repair—

6. All rents rates taxes duties charges assessments and other outgoings whatsoever whether parliamentary parochial or of any other description charged or unpaid upon or in respect of the Lessor's property and not the liability of the Lessee or any other

7. The fees of the Lessor's and the Superior Lessor managing agents for the collection of the rents of the maisonettes and/or flats in the Building and for the general management thereof.

8. All fees and costs incurred in respect of the Certificate and of accounts kept and audits made for the purpose thereof.

9. Any amount which the Lessor shall be called upon to pay as a contribution towards the expense of making repairing maintaining rebuilding and cleansing all ways roads pavements sewers drains pipes gutters watercourses party walls party structures party fences walls or other conveniences which may belong to or be used for the Lessor's property in common with other premises near or adjoining thereto.

10. The cost of maintaining repairing and renewing the television and radio receiving aerials (if any) installed on the Building and/or any rent therefor as used or capable of being used by the Lessee in common as aforesaid.

11. All costs and expenses incurred by the Lessor in complying with his covenants under the Head Lease and Licence except those incurred in carrying out the works of conversion permitted by the Licence.

12. The cost of taking all steps deemed desirable or expedient by the Lessor for complying with making representations against or otherwise contesting the incidence of the provisions of any legislation or orders or statutory requirements thereunder concerning Town & Country Planning Public Health Highways Streets Drainage or other matters relating or alleged to relate to the Building for which the Lessee is not directly liable hereunder.

SIGNED SEALED and DELIVERED
by the said STANLEY H. S. DAVIS
in the presence of:-

Stanley H. S. Davis,
23 Farnfield Road,
Beaconsfield, Bucks.
HP9 1PG.
Woollen Merchant

Lessee
of
for the
the
de
ed
nse
ns
ences
s
ewing
(any)
re for a
essor
rable
any
nts
her

SIGNED, SEALED AND DELIVERED
in the said presence of
COUNSELLOR AT LAW
in the presence of:

Ketty Graham

Stanley H. Davis
23 Turnfield Road,
Beaconsfield, Bucks.
HP9 1PG.
Woolen Merchant.

FRONT & RIX 15 LEVER
CAMPBELL MOUNTING LOCK &
TWO NUMBER 2 1/2" x 7/8"
ALUMINUM MOLT.

